

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2024CUPA024609: HIROSHI STEPHENS vs STANLEY M MONROY

08/26/2026 in Department 43

Motion for Judgment on the Pleadings

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant's Motion for Judgment on the Pleadings

Tentative Ruling: Defendant's Motion for Judgment on the Pleadings is GRANTED.

In his reply, Defendant concedes that email service of this motion was insufficient by one day. However, on August 14, 2026, the parties stipulated to continue the hearing from August 18, 2026, to a later date convenient for Plaintiff's counsel. The Court selected August 26, 2026. Plaintiff did not request leave to supplement his brief in light of the continuance and does not claim in his opposition any prejudice resulted from the single day deficiency in notice. The Court does not believe any prejudice resulted and Plaintiff had sufficient opportunity to oppose the motion.

Defendant's Request for Judicial Notice is GRANTED pursuant to Evidence Code section 452, subdivision d as to: (1) the filed documents in 2024CUPA020866, including the Complaint (2/14/24) First Amended Complaint (4/10/24), Request for Dismissal (4/19/24), and (2) the Complaint (5/10/24) and Answer (11/5/24) in this action.

DISCUSSION

The Court GRANTS Defendant's Motion for Judgment on the Pleadings, finding that Plaintiff's April 19, 2026, dismissal *with prejudice* of Defendant in 2024CUPA020866 Hiroshi Stephens vs Anthony M. Valencia, et al. is a res judicata bar to Plaintiff's subsequent civil action for the same subject matter: a traffic accident of May 1, 2023. (Code Civ. Proc., §438(c)(1)(B)(ii); *LaCour v. Marshalls of California, LLC* (2023) 94 Cal.App.5th 1172, ("[a] dismissal with prejudice is considered a judgment on the merits preventing subsequent litigation between the parties on the dismissed claim.") The court notes that a motion for judgment on the pleadings can be brought at any time. (*Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650; Code Civ. Proc., §438(e) ("unless the court otherwise permits").

Code Civ. Proc. § 438 regarding motions for judgment on the pleadings provides, in relevant part:

(c)(1) The motion provided for in this section may only be made on one of the following grounds:

(B) If the moving party is a defendant, that either of the following conditions exist:

(ii) The complaint does not state facts sufficient to constitute a cause of action against that defendant.

California law is clear that "[a] dismissal with prejudice is considered a judgment on the merits preventing subsequent litigation between the parties on the dismissed claim." (*LaCour v. Marshalls of California, LLC* (2023) 94 Cal.App.5th 1172, 1191 citing, inter alia, *Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 91) *Roybal v. Ford*, cited by moving party is pretty closely on point in which a dismissal of a municipal court action constitute a final judgment invoking the bar of res judicata to a subsequent case brought in superior court.

Under California law, a dismissal with prejudice is considered the modern equivalent of a common law retraxit and acts as a final determination on the merits that bars future litigation between the same parties on the same subject matter. See *Torrey Pines Bank v. Superior Court* (1989) 216 Cal. App. 3d 813. The statutory term "with prejudice" terminates the plaintiff's right of action, preventing it from being revived and precluding the dismissing party from litigating those issues again.

"In the common law, a retraxit was 'a voluntary renunciation by plaintiff in open court of his suit and cause thereof, and by it plaintiff forever loses his action.' [Citations.] In California, the same effect is now accomplished by a dismissal with prejudice. [Citations.]" (*Morris v. Blank* (2001) 94 Cal.App.4th 823, 828 [114 Cal. Rptr. 2d 672].)

" "A retraxit has always been deemed a judgment on the merits against the plaintiff, estopping him from subsequently maintaining an action for the cause renounced." [Citation.] [Citation.] A retraxit is equivalent to a judgment on the merits and as such bars further litigation on the same subject matter between the parties." (*Torrey Pines Bank v. Superior Court* (1989) 216 Cal. App. 3d 813, 820

[265 Cal. Rptr. 217.) Accordingly, the determination whether Curren’s dismissal of his civil action bars subsequent litigation of his workers’ compensation claim must be analyzed under traditional principles of res judicata and collateral estoppel. (*Morris v. Blank*, supra, 94 CalApp.4th at p. 830 [following voluntary dismissal with prejudice, “the question is whether plaintiff’s superior court action is barred by res judicata or collateral estoppel”]; *Rice v. Crow* (2000) 81 Cal.App.4th 725, 733–734 [97 Cal. Rptr. 2d 110] [“a retraxit invokes the principles of res judicata”].)

Le Parc Community Assn. v. Workers' Comp. Appeals Bd. (2003) 110 Cal. App. 4th 1161.

The two consolidated cases arise from the same traffic accident on May 1, 2023. Case no. 2024CUPA020866 was filed by Plaintiff Stephens on February 14, 2024, and then dismissed with prejudice as to Monroy on April 19, 2024. On May 10, 2024, Plaintiff Stephens filed this action against Monroy. The dismissal *with prejudice* stands as res judicata which prevents bringing the suit again against the same defendant for the same subject matter.

In brief, the Court addresses Plaintiff’s procedural arguments:

1. C.C.P. § 438(f).

A defendant may only move for judgment on the pleadings after they have filed an answer and the time for the defendant to demur has expired.

Defendant Monroy has complied. An answer was filed on November 5, 2024.

2. C.C.P. § 438(e).

No motion can be made under C.C.P. § 438 after entry of a pre-trial conference order or within 30 days of the date the action is initially set for trial, *whichever is later*. This motion is not untimely because this action was not initially set for trial on October 25, 2026. That is the initial date set for trial in the consolidated case, number 2024CUPA020866. That trial date bears no relation to the trial date in this case in which the motion is filed. In this case, number 2024CUPA024609, the case management order of May 29, 2025, set an initial trial of September 28, 2026. Furthermore, there has been no pre-trial conference order, so the deadline is governed by the trial date. The motion is timely.

3. Defendant and moving party failed to provide 16 court days-notice because Defendant did not add two days for electronic service.

Plaintiff requests that the court continue the hearing to “permit the full statutory notice period and a complete opposition.” As stated above and given the request for continuance of the hearing by Plaintiff, the Court finds no evidence of prejudice to Plaintiff as a result of the one-day deficiency. The Court would have entertained a request to supplement briefing had it been made, but since the continuance requested by Plaintiff resulted in the motion being heard only 33 days before trial, an additional continuance will not be granted and no prejudice is found from the one day delay.

Moving party is ordered to serve notice of the Court's ruling.